

Mahipal Alias Mahipal Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 August 2009 · WRIT - C No. 34848 of 2009 · **Objections under cl. 8.1(b) to be considered; recovery stayed pending assessment**

HEADNOTE

In a theft proceeding the consumer may raise objections before the Executive Engineer under para 8.1(b) of the U.P. Electricity Supply Code, 2005, before final assessment. The High Court directed that if objections are filed they be considered expeditiously (if possible within one month) and that any recovery certificate or citation issued in the meantime remain suspended until that assessment is passed.

FACTUAL SUMMARY

Mahipal applied for a new connection and deposited the estimated abstract cost. The estimate put the LT line at 270 metres; the proposed site was not less than 200 metres from Raj Pal's supply. He was still not connected. A checking party alleged he had tapped Raj Pal's line with a 10-metre cable. He denied any supply within 10 metres and said the recovered cable could not have made the tap. He petitioned the High Court while facing that theft proceeding.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1(b)

objections before final theft assessment

HOLDING

A consumer in a theft case has a right to raise objections before the Executive Engineer under para 8.1(b) of the U.P. Electricity Supply Code, 2005, before final assessment is made. If objections are filed, the Executive Engineer shall consider them expeditiously and if possible within one month. Where no recovery certificate has yet issued, none is stayed in advance; but if a recovery certificate and citation are issued in the meantime, they remain suspended until the final assessment order. ¶ 4-5

PRINCIPLE TAGS

no-recovery-without-final-assessment-clause-8.1(b) In a theft proceeding the consumer may raise objections before the Executive Engineer under para 8.1(b) of the U.P. Electricity Supply Code, 2005, before final assessment.. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER COMMITTED UNAUTHORIZED USE BY TAPPING RAJ PAL'S CONNECTION

Court left the theft story to the 8.1(b) assessment and did not decide it on the writ. ¶ 4-5

NOT DECIDED — WHETHER A NEW CONNECTION MUST BE GRANTED AFTER DEPOSIT OF ESTIMATED COST

¶ 4-5